

Ganesh Agrawal v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 February 2023 · Writ-C No. 42247 of 2009 · **Writ dismissed for want of prosecution; 2009 recovery stay without deciding Clause 6.8(b)(i).**

HEADNOTE

On a challenge to recovery of a UUE assessment, the consumer alleged that the final assessment of 9 January 2008 was made before the 15 working days required by Clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 after registered-post dispatch of the provisional assessment on 28 December 2007. Mehrotra and Mithal, JJ. treated the plea as requiring consideration, stayed the 28 July 2009 recovery citation, and left the licensee free to issue a fresh show-cause notice with the provisional assessment in accordance with the Supply Code. The writ was later dismissed for want of prosecution.

FACTUAL SUMMARY

A checking of the petitioner's connection was done on 18 December 2007. UPPCL sent a provisional assessment by registered post on 28 December 2007 and made a final assessment on 9 January 2008. Ganesh Agrawal challenged the 28 July 2009 recovery citation, alleging that the final assessment was made before the 15 working days allowed under Clause 6.8(b)(i) of the Supply Code, 2005 for reply. Recovery was stayed in 2009 with liberty for a fresh notice; the writ was later dismissed for want of prosecution.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

fifteen working days for reply to provisional UUE assessment

HOLDING

Pending consideration of whether a final assessment made before expiry of 15 working days from registered-post dispatch of the provisional assessment complied with Clause 6.8(b)(i), recovery on the citation was stayed and the licensee was left free to serve a fresh show-cause notice with the provisional assessment in accordance with the Supply Code. The writ was thereafter dismissed for want of prosecution, without a merits decision on that clause. ¶ 27.8.2009

FLAG cited as 6.8(b)(i)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT OF 9 JANUARY 2008, MADE BEFORE EXPIRY OF 15 WORKING DAYS FROM DISPATCH OF THE PROVISIONAL ASSESSMENT ON 28 DECEMBER 2007, VIOLATED CLAUSE 6.8(B)(I)

Recorded as requiring consideration; writ later dismissed for want of prosecution ¶ 27.8.2009